

STATE OF NEW YORK

3029--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 23, 2025

Introduced by M. of A. KELLES, SCHIAVONI, GALLAGHER -- read once and referred to the Committee on Governmental Operations -- recommitted to the Committee on Governmental Operations in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to establishing standards for the reuse of deconstructed building materials

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraph c of subdivision 2 of section 377 of the executive law, as added by chapter 707 of the laws of 1981, is amended to read as follows:

c. permit to the fullest extent feasible, use of modern technical methods, devices and improvements which tend to reduce the cost of construction, including the reuse of deconstructed building materials, without substantially affecting reasonable requirements for the health, safety and security of the occupants or users of buildings;

§ 2. Section 378 of the executive law is amended by adding a new subdivision 19-a to read as follows:

19-a. a. To support the goal of zero on-site greenhouse gas emissions and help achieve the state's clear energy and climate agenda, including but not limited to greenhouse gas reduction requirements set forth within chapter one hundred six of the laws of two thousand nineteen, also known as the New York state climate leadership and community protection act, the uniform code shall set standards for the use of salvage lumber that has been previously used in buildings or other structures in construction and for the grading of salvage lumber.

b. The uniform code shall provide that salvage lumber shall be permitted to use not greater than ninety percent of the design values assigned to the species and grade of sawn lumber in the American Wood Council National Design Specification, provided an approved entity, including,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD00127-02-6

1 but not limited to, a grading or inspection agency or registered design
2 professional, provides verification of compliance with all of the
3 following conditions:

4 (i) the salvage lumber is identified by a grade mark conforming with
5 International Residential Code R602.1.1 for sawn lumber, or is accompa-
6 nied by a certificate of inspection issued by a lumber grading or
7 inspection agency conforming with International Residential Code
8 R602.1.1 for sawn lumber detailing the species and grade;

9 (ii) the salvage lumber is free of net section reductions exceeding
10 the limitations permitted for the assigned grade;

11 (iii) the salvage lumber is free of areas of decay, fire damage or
12 insect damage exceeding the limitations permitted for the assigned
13 grade;

14 (iv) the salvage lumber shows no signs of failure or strength reducing
15 characteristics exceeding the limitations permitted for the assigned
16 grade as a result of structural loading, deconstruction, or other caus-
17 es;

18 (v) the salvage lumber has not been subjected to temperatures contin-
19 uously above one hundred degrees Fahrenheit (thirty-eight degrees Celsi-
20 us), both day and night, for a period exceeding six months; and

21 (vi) the word "Salvage" and the name of the approved entity confirming
22 compliance with subparagraphs (i) through (v) of this paragraph shall be
23 legibly and permanently applied in indelible ink.

24 § 3. Section 376 of the executive law is amended by adding a new
25 subdivision 7 to read as follows:

26 7. To develop a program for grading salvage lumber for structural
27 purposes. The program shall be developed in consultation with industry
28 stakeholders and shall include standards for determining the structural
29 integrity of salvage lumber. The program shall be updated as necessary
30 to reflect advances in technology and best practices.

31 § 4. This act shall take effect immediately.